



ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC
OF LIBERIA, SITTING IN ITS OCTOBER TERM, A.D. 2019

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Ezzat N. Eid of the City of Monrovia, Liberia
.....Appellant/Appellee

Versus

Alexander Konkai Freeman, Momolue S.
Freeman, Ecelo Freeman and B. Dixon, Heirs
and Administrators and Administratrix of the
Intestate Estate of the Late Alexander B. Mars,
Jr., all of City of Monrovia, Liberia
.....Appellees/Appellants

GROWING OUT OF THE CASE:

Alexander Konkai Freeman, Momolue S.
and Freeman, Ecelo Freeman and B. Dixon,
Heirs Administrators and Administratrix of the
Intestate Estate of the Alexander B. Mars, Jr.
all of City of Monrovia, Liberia
.....Plaintiffs

Versus

Ezzat N. Eid of the City of Monrovia, Liberia
.....Defendant

APPEAL

SUMMARY
PROCEEDINGS TO
RECOVER POSSESSION
OF REAL PROPERTY



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Heard: October 31, 2019

Decided: December 23, 2019

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellor Albert S. Sims of the Sherman & Sherman, Inc. appeared for the appellant. Counsellor Milton D. Taylor of the Law offices of Taylor and Associates appeared for the appellees.

The counsel for the appellant/appellee, Ezzat N. Eid made the following submission on the minutes of Court:

“One of counsels for the appellant(s) most respectfully requests Your Honors and this Honorable Court to take judicial notice of the records of these proceedings; that on February 7, 2018, both the appellant and appellees entered a Joint Stipulation of Withdrawal to have the Court terminate the case. The Joint Stipulation of Withdrawal was approved by former Associate Justice Kabineh M. Ja'neh. And respectfully submits.”

The Joint Stipulation reads as follow:

“Ezzat N. Eid and the Administrators and Administratrix of the Intestate Estate of the late Alexander B. Mars, Jr. Appellant/Appellee and Appellees/Appellants, respectively, in the above entitled case most respectfully pray Your Honors for the discontinuance, withdrawal and abatement of, and hereby discontinue, withdraw and abate the cross or two separate appeals in said case, and thereby terminate the Summary Proceedings to Recover Possession of Real Property out of which the appeal grows, and for legal and factual reasons sheweth the following, to wit:

- I. That Rule III, Part II of the 1999 Revised Rules of the Supreme Court provides that the appellant and appellee may, in vacation by themselves or counsel, sign and file with the Clerk of the Supreme Court an agreement in writing, directing the cause to be withdrawn; and as to cost, shall pay to the Clerk any fee that may be due.



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2. That in full knowledge of the law cited above, appellant/appellee and appellees/appellants have instructed their respective legal counsels to file a joint stipulation of discontinuance, withdrawal and abatement, thereby terminating their cross or two separate appeals and the case out of which said appeals emanate in its entirety and forever.
3. That predicated on the law cited above, and the averment contained in count two (2) immediately above, appellant/appellee and appellees/appellants pray Your Honors as follows:
 - (i) That the cross or two separate appeals emanating from the Summary Proceedings to Recover Real Property be and the same is hereby discontinued, withdrawn, abated and terminated forever.
 - (ii) That consequent upon the discontinuance, withdrawal, and abatement of the appeals as stated in sub-paragraph 3(3) above, appellant/appellee, Ezzat N. Eid agrees and undertakes to pay or cause to be paid, and appellees/appellants, the Administrators and Administratrix of the Intestate Estate of the late Alexander B. Mars, Jr. agree to accept the amount of US\$55,000.00 (United States Dollars Fifty-Five Thousand), same being the total judgment sum awarded the said Intestate Estate by the Civil Law Court of the Sixth Judicial Circuit for Montserrado County in its final judgment entered on the 7th day of April, 2016, and from which the cross or two separate appeals were announced to the Honorable Supreme Court of Liberia. The appellees/appellants, the Administrators and Administratrix of the Intestate Estate of the late Alexander B. Mars, Jr. hereby expressly acknowledge payment of the said amount of US\$55,000.00 (United States Dollars Fifty-Five Thousand) by appellant/appellee, Ezzat N. Eid, as evidenced by the payment receipt captioned: SETTLEMENT PAYMENT, attached hereto and which forms an integral part of this instrument.
 - (iii) That a judgment without opinion be rendered by the Honorable Supreme Court of Liberia in said appeals during its October Term, A.D. 2017 or any subsequent term of this Honorable Court.



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- (iv) That this joint stipulation of discontinuance, withdrawal, and abatement be filed by the Clerk of the Supreme Court, and by that filing, the cross or two separate appeals in the Summary Proceedings to Recover Real Property and the case in its entirety be terminated forever.

Respectfully submitted,
Ezzat N. Eid, Appellant/Appellee
By and thru his legal counsel
Sherman & Sherman, Inc.
R. Fole Sherman Law Building
17th Street & Chesseman Avenue, Sinkor
Monrovia, Liberia

Albert S. Sims
COUNSELLOR-AT-LAW

Golda A. Bonah Elliot
COUNSELLOR-AT-LAW

G. Moses Paegar
COUNSELLOR-AT-LAW

THE INTESTATE ESTATE OF THE LATE ALEXANDER B. MARS, JR.
APPELLANTS/APPELLEES
By and thru their legal counsel
Law Offices of Taylor and Associates
Front Street, Opposite Sarah E. Barclay Church
Monrovia, Liberia

Milton D. Taylor
COUNSELLOR-AT-LAW



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ACKNOWLEDGEMENT

This joint stipulation of discontinuance, withdrawal and abatement is acknowledged, consented to and approved by:

Ezzat N. Eid
APPELLANT/APPELLEE

Alexander Konkai Freeman
Administrator for the
APPELLEES/APPELLANTS,
Representing the Intestate Estate
of the late Alexander Mars, Jr.

Dated this 20th day of December, 2017

Approved:

HIS HONOR KABINEH M. JA'NEH
ASSOCIATE JUSTICE PRESIDING IN CHAMBERS
THE HONORABLE SUPREME COURT OF LIBERIA"

This Court, having ascertained from the counsels representing the parties as to whether their clients consented to the voluntary withdrawal, and they, having answered in the affirmative, and this Court being satisfied with the said stipulation of withdrawal, it is hereby

ADJUDGED:

That the Stipulation of Withdrawal, being consistent with the Revised Rules of the Supreme Court, is hereby granted and the Clerk of this Court is mandated to have the proceedings in the main case, including the bill of information withdrawn and stricken from the docket of this Court.



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The Clerk of this Court is hereby ordered to have the cause removed from the docket.
Costs are disallowed. AND IT IS SO ORDERED.

GIVEN UNDER OUR HANDS AND SEAL OF THE
SUPREME COURT OF LIBERIA THIS 23RD DAY OF
DECEMBER, A.D. 2019

Francis S. Korkpor, Sr.

CHIEF JUSTICE, SUPREME COURT OF LIBERIA

Enefeta H. Wolokolie

ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Sie-A-Nyene G. Yuoh

ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Joseph N. Nagbe

ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Yussif D. Kaba

ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA